



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 21 judgments on Tuesday 7 November 2017 and 44 judgments and / or decisions on Thursday 9 November 2017.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 7 November 2017

[Leuska and Others v. Estonia \(application no. 64734/11\)](#)

The applicants are four Estonian nationals: Ms K. Leuska and Mr A. Leuska, a couple; and Ms P. Esop, and Ms K.-B. Esop, mother and daughter. The case concerns their complaint about the proceedings following the death of Mr and Ms Leuska's son in a traffic accident in 2010. Ms K.-B. Esop was injured in the accident.

The man suspected of being responsible for the accident was convicted as a result of settlement proceedings of violating traffic and driving regulations in March 2011 and sentenced to a suspended prison term. Within these criminal proceedings the applicants had lodged a civil claim for compensation for non-pecuniary damage and legal costs. They had subsequently withdrawn their claim for non-pecuniary damage, having reached an out-of-court settlement with the suspect in January 2011. When giving their consent to the settlement procedure, they had explicitly stated that they had not given up their claim for reimbursement of their legal costs incurred in the criminal proceedings. However, the judgment of March 2011 made no mention of the applicants' claim for legal costs.

The applicants thus lodged an appeal against the judgment of March 2011, complaining that they had not been allowed to attend the court hearing on the case and that the court had left their claim for reimbursement of legal costs undecided. Their appeal was subsequently dismissed, at two levels, because they had not been parties to the court proceedings and therefore had no right to appeal. The Supreme Court refused to examine their appeal on points of law.

Relying on Article 6 § 1 (right to a fair hearing / access to court) of the European Convention on Human Rights, the applicants complain that their claim for reimbursement of the legal costs incurred in the criminal proceedings remained undecided and that they were not heard by the trial court.

[Egill Einarsson v. Iceland \(no. 24703/15\)](#)

The case concerns a complaint by an Icelandic national, Egill Einarsson, about a Supreme Court ruling, which found he had not been defamed by the words "Fuck you rapist bastard" used in an Instagram post about him. Prosecutors had previously dismissed rape and sexual offence accusations against him.

Mr Einarsson, born in 1980, was at the time a well-known writer of blogs, articles and books, who had also appeared on television. He was accused of rape in 2011 and in early 2012 of having committed another sexual offence a few years earlier. Prosecutors later dismissed the cases for lack of evidence. In November 2012 Mr Einarsson gave an interview to a local magazine, which included his picture on the front page and his comments on the rape accusation. He stated several times that the accusations were false.

On the same day as the interview, X posted an altered version of the magazine photograph of Mr Einarsson on Internet picture-sharing service Instagram, accompanied by the caption, “Fuck you rapist bastard”. X had changed the picture by drawing an upside-down cross on Mr Einarsson’s forehead and writing “loser” across his face.

Mr Einarsson’s lawyer wrote to X to ask him to withdraw the statement, apologise in the media and pay damages. X’s lawyer replied in an email that X had not distributed the picture online as it had been posted to a closed group on Instagram and had been distributed by others. The email also said that X was sorry and that the picture had been shared without his consent or knowledge.

Mr Einarsson began defamation proceedings in the Reykjavik District Court in December 2012, seeking X’s punishment under the Penal Code for altering the picture and publishing it on Instagram with the caption. He also wanted the words in the caption to be declared null and void and for X to pay damages.

The District Court dismissed Mr Einarsson’s claim in November 2013, a judgment that was upheld on appeal by the Supreme Court just over a year later. The Supreme Court found that X’s remarks were not a statement of fact, but were a value judgment that was not defamatory. It said that the words had to be seen in the context of a public debate instigated earlier by Mr Einarsson.

Relying on Article 8 (right to respect for private and family life), Mr Einarsson complains about the Supreme Court judgment, which he says meant that he could be called a rapist without being charged or convicted of such a crime and without being able to defend himself.

[Tripkovici v. Montenegro \(no. 80104/13\)](#)

The applicants, Dan Laurentiu Tripkovici and his mother, Armenuhi Tripkovici (now deceased), are both dual Romanian and Italian nationals. They were born in 1949 and 1923 respectively and live(d) in Bucharest. The case concerns their complaint about a judgment by the domestic courts rejecting their claim for trespass.

The mother and son were co-owners of two plots of land in Montenegro. In February 2009, their neighbour built a metal fence which went over their property, making access impossible from one plot of land to the other. In June 2011, they won the case they had brought to court for trespass, and their neighbour was ordered to remove the fence and pay their legal costs. In December 2011 however the High Court, ruling on an appeal lodged by the neighbour, overturned the previous judgment because their claim had been submitted two days out of time. In particular they had submitted their claim on the first day back of the courts sitting following a two-day bank holiday.

Relying on Article 6 § 1 (right to a fair hearing) and Article 1 of Protocol No. 1 (protection of property), they complain that the decision to reject their claim was unfair because it did not explain why the rule under domestic law, providing that the time-limit for filing a civil claim expired on the first working day after a national holiday, did not apply in their case.

[Akhlyustin v. Russia \(no. 21200/05\)](#)

[Dudchenko v. Russia \(no. 37717/05\)](#)

[Konstantin Moskalev v. Russia \(no. 59589/10\)](#)

[Moskalev v. Russia \(no. 44045/05\)](#)

[Zubkov and Others v. Russia \(nos. 29431/05, 7070/06, and 5402/07\)](#)

All five cases concern secret surveillance measures in the context of criminal proceedings. In four out of the five cases, surveillance measures were ordered under the Operational Search Activities Act; in the other case, *Dudchenko v. Russia*, the measures were ordered under the Code of Criminal Procedure. In all five cases the applicants allege in particular a violation of Article 8 (right to respect for private and family life, the home and the correspondence), essentially complaining about various

surveillance measures against them, including telephone tapping, covert filming, video and audio surveillance.

The applicant in the first case, Vladimir Akhlyustin, is a Russian national who was born in 1979 and lives in Ivanovo (Russia). A member of the Ivanovo Region electoral commission, he was convicted in September 2004 of abuse of power and given a two-year suspended prison sentence. His conviction was based, along with witness statements and expert reports, on evidence obtained via the so-called police “surveillance” measures which did not require a judicial authorisation, namely covert filming of his office. His conviction was upheld on appeal in November 2004. The courts notably found that the video recordings were admissible as evidence because they had been obtained in accordance with the procedure prescribed by law.

In his Article 8 complaint, Mr Akhlyustin notably alleges that the covert filming of his office had interfered with the privacy of his home and correspondence.

The applicant in the second case, Vladimir Dudchenko, is a Russian national who was born in 1975 and lives in Murmansk (Russia). Suspected of being the leader of a criminal armed gang, he was arrested in December 2003 and spent the next two years and four months in pre-trial detention. The domestic courts based their decisions to extend his detention during this period essentially on the gravity of the charges against him. After the case was submitted for trial, the courts issued collective detention orders against him and two other co-accused. Mr Dudchenko was found guilty as charged in May 2006 and sentenced to 13 years’ imprisonment. The courts relied, among other evidence, on transcripts of conversations with one of his alleged accomplices and his counsel which had been obtained via telephone tapping. He appealed against his conviction, complaining about: the use of the transcripts as evidence in the proceedings against him; the removal of his counsel from the case; and the authorities’ refusal to allow his brother to act as his legal representative. His conviction was however upheld in December 2006, the courts finding that the transcripts had been correctly admitted as evidence and that any breach of his defence rights had already been rejected as unsubstantiated.

In his Article 8 complaint, Mr Dudchenko specifically alleges that his telephone conversations with his counsel should have been protected by legal professional privilege. He also makes a number of other complaints, alleging: under Article 3 (prohibition of inhuman or degrading treatment) that the inadequate conditions of his detention in various remand prisons and when being transported between detention facilities were inadequate; under Article 5 § 3 (right to liberty and security) that his pre-trial detention was too long and unjustified; and under Article 6 §§ 1 and 3 (c) (right to a fair trial within a reasonable time and right to legal assistance of own choosing) that the criminal proceedings against him had lasted too long and that he had been unable to defend himself through legal assistance of his own choosing.

The applicant in the third case, Konstantin Moskalev, is a Russian national who was born in 1982 and lives in the Krasnoyarsk region (Russia). A police officer, he was convicted in December 2009 of attempted fraud and sentenced to just over two years’ imprisonment. He was also stripped of his rank in the police. The court based its judgment on, among other evidence such as witness statements and expert opinions, Mr Moskalev’s telephone conversations intercepted during a surveillance operation. Throughout the criminal proceedings, Mr Moskalev complained unsuccessfully about the interception of his telephone communications without judicial authorisation, as permitted under the relevant domestic law – the Operational Search Activities Act – in urgent cases. He also argued on appeal that the evidence thus obtained had been unlawful and should not have been used to convict him. His conviction was however upheld on appeal in April 2010, on the ground that the decisions declaring the evidence admissible had been correct.

In his Article 8 complaint, the applicant notably alleges that the domestic courts had not made any assessment of whether the urgent procedure in his case had been justified. The Court will also

examine under Article 13 (right to an effective remedy) in conjunction with Article 8 whether it had been possible for him to effectively challenge the interception of his telephone communications.

The applicant in the fourth case, Yuriy Moskaev, is a Russian national who was born in 1960 and lives in Omsk (Russia). A prison official, he was found guilty in February 2005 of disclosing State secrets by informing a convict's relative that the convict was under covert surveillance. He was given a three-year suspended prison sentence. His conviction was based on evidence obtained via telephone tapping, monitoring of his postal and digital communications as well audio surveillance of his office ordered in the context of a wider investigation into allegations of prison officials operating a bribery scheme. His complaint that the recording of his telephone conversation with a convict's relative had been obtained unlawfully and should not be admitted in evidence was rejected. The first-instance court found in particular that the interception of his telephone conversations had been authorised by a court on the grounds that he was suspected of a serious criminal offence, bribe-taking. His conviction was upheld on appeal in June 2005, the Supreme Court noting that all evidence had been collected in accordance with the procedure prescribed by law. Charges of bribe-taking or abuse of power were never brought against him.

In his Article 8 complaint, the applicant alleges that the covert surveillance measures taken against him had not been necessary. In particular he complains that the judge who authorised the measures did not verify whether there had been a reasonable suspicion of his involvement in bribe-taking; and, moreover, alleges that the offence for which he had ultimately been convicted was in no way connected to the offences mentioned in the authorisation for surveillance.

The applicants in the fifth case are Maksim Zubkov, Andrey Ippolitov, and Andrey Gorbunov; they are Russian nationals who were born in 1979, 1975, and 1964 respectively and live in Novgorod, Tver, and Vladimir (all in Russia). All three applicants were arrested and charged with a number of criminal offences: Mr Zubkov with drug trafficking in 2002; Mr Ippolitov with aiding and abetting bribery in 2004; and Mr Gorbunov with fraud in 2006. During the ensuing criminal proceedings against them, they discovered that they had been the subject of secret surveillance as the prosecution were using audio and video recordings as evidence to substantiate the cases against them. They argued that the recordings should not be admitted as evidence as they had been obtained without prior judicial authorisation. They also requested access to the decisions authorising such covert surveillance. Their requests were however refused on grounds of confidentiality. Both Mr Zubkov and Mr Ippolitov were convicted as charged in 2004/5 and given prison sentences. The judgments against them were subsequently upheld on appeal. Mr Gorbunov's detention has been extended on a number of occasions since 2006.

In their Article 8 complaint, they complain in particular about the authorities refusing them access to the judicial decisions authorising the secret surveillance against them; Mr Zubkov even doubts that such judicial authorisation existed in his case. Relying on Article 3 (prohibition of inhuman or degrading treatment), Mr Gorbunov also complains about the conditions of his detention on remand from September 2006 to January 2007 and of his transport between remand prisons during this period. He further alleges under Article 5 § 4 (right to have lawfulness of detention decided speedily by a court) that it had taken the Russian courts too long to examine an appeal he had lodged against an order extending his detention in November 2006.

[Bambayev v. Russia \(no. 19816/09\)](#)

The applicant, Tseren Anatolyevich Bambayev, is a Russian national who was born in 1985 and lives in Elista (Russia). The case concerns Mr Bambayev's allegations regarding the use of excessive force against him by officers in a correctional colony, and the lack of an effective investigation.

Mr Bambayev was sentenced to a term of imprisonment in 2007 and was held in a correctional colony in the village of Vakhtovo in the Republic of Kalmykia. On 1 January 2009 some of the colony officers struck Mr Bambayev several times with truncheons for refusing to submit to a body search.

The following day his mother lodged a criminal complaint with the public prosecutor, alleging that the force used against her son had been excessive and unjustified. In the course of the preliminary investigation Mr Bambayev underwent a forensic medical examination which confirmed the presence on several parts of his body of bruises and abrasions caused by blunt instruments.

The investigating authorities subsequently issued several decisions refusing to open a criminal investigation. They based their decisions in substance on the version of events supplied by the officers, who claimed that the use of truncheons had been justified by Mr Bambayev's conduct. In parallel proceedings the applicant brought a civil action seeking compensation for the non-pecuniary damage he had allegedly sustained. In October 2009 the court allowed his claims and awarded him 20,000 Russian roubles (approximately 450 euros (EUR)). That judgment was upheld by the Supreme Court of the Republic of Kalmykia.

In November 2013, after the Government had been given notice of the application, the investigating authorities set aside the decision refusing to open a criminal investigation and ordered the re-opening of a preliminary investigation.

Relying on Article 3 (prohibition of torture and inhuman or degrading treatment), Mr Bambayev alleges that during the incident on 1 January 2009 he was subjected to ill-treatment which in his view amounted to torture. He also complains of the lack of an effective investigation in that regard.

[Cherednichenko and Others v. Russia \(nos. 35082/13, 63216/13, 31766/15, 35428/15, and 50645/16\)](#)

These five applications concern the starting-point of the time allowed for lodging an appeal in civil proceedings. The applicants' appeals were declared inadmissible as being out of time under domestic law.

Relying on Article 6 § 1 (right of access to a court), the applicants complain of the fact that their appeals were declared inadmissible as being out of time, arguing that the procedural rules were applied incorrectly.

The first application (no. 35082/13) was lodged by Irina Fedorovna Cherednichenko, who was born in 1959 and lives in Krasnodar (Russia). Ms Cherednichenko brought an action in tort which was dismissed on 6 August 2012. On 23 August 2012 she lodged a short notice of appeal, explaining that she would be able to set out the grounds for her appeal only when she had received the full text of the decision. On 30 August 2012 she received a full copy of the decision, and on 24 September 2012 she sent her grounds of appeal by registered letter, together with an application for extension of the time-limit for lodging an appeal. The registry of the District Court received the letter on 16 October 2012. In the meantime, on 8 October 2012, the judge ruled that the notice of appeal was inadmissible because Ms Cherednichenko had not remedied the irregularities identified within the time allowed. The applicant applied to the District Court for an extension of the time-limit for appealing, without success. She lodged a cassation appeal against that decision, which was also dismissed.

The second application (no. 63216/13) was lodged by Natalya Vladimirovna Polupanova, who was born in 1975 and lives in Volgograd (Russia). Ms Polupanova appealed against her dismissal from her post, but her appeal was rejected on 19 April 2012. The District Court sent her the full text of the judgment by post on 28 April 2012. According to the applicant, she received the letter on 11 May 2012. She posted her grounds of appeal on 30 May 2012 and applied for an extension of the time-limit for appealing. However, her application was declared admissible as being out of time. The District Court found in particular that the period for lodging an appeal had started on the day following the date on which the full text of the judgment had been finalised, that is, on 24 April 2012. The applicant appealed but her appeal was declared inadmissible as being out of time.

The third application (no. 31766/15) was lodged by Viktor Leonidovich Storozhenko, who was born in 1953 and lives in Vladivostok (Russia). Mr Storozhenko requested the opening of a criminal investigation into damage done to his vehicle. Taking the view that the investigation had been ineffective, he lodged a claim for compensation against the Federal Government and two ministries. He was given notice to appear at two hearings, but requested that the District Court rule in his absence. On 17 January 2015, since he had not received any documents, Mr Storozhenko requested the District Court to send him the judgment. According to the Government, Mr Storozhenko's claims were rejected on 11 November 2014 – the date of the second hearing – and that decision became final on 12 December 2014, as the applicant did not appeal. According to the register of postal deliveries, the registry sent the letter in question to an address in Moscow instead of Vladivostok.

The fourth application (no. 35428/15) was lodged by Radik Gilfanovich Khabibullin, who was born in 1966 and lives in Popovka (Russia). Mr Khabibullin lodged a claim for damages against the Russian Central Bank which was dismissed on 18 March 2015. According to Mr Khabibullin, only the operative part of the judgment was delivered at the hearing. In April 2015 he made two requests for a copy of the judgment accompanied by reasons. On 18 April 2015 he filed a notice of appeal. On 27 June 2015 he received a copy of the judgment by post. On 1 July of that year he lodged his grounds of appeal with the registry, and was sent a notice to appear at a hearing on 6 October 2015, on which his name was misspelled. Believing that the notice was not intended for him, he decided not to appear. He later learnt that his appeal had been dismissed on 6 October 2015.

The fifth application (no. 50645/16) was lodged by Aleksandr Gennadyevich Smirnov, who was born in 1966 and lives in Volgorechensk (Russia). Mr Smirnov brought proceedings against a private company concerning the performance of a contract of sale. His action was dismissed on 22 June 2015. The District Court delivered only the operative part of the judgment at the hearing. On 30 June 2015 Mr Smirnov received a copy of the full judgment, and on 30 July 2015 he lodged an appeal. On 3 August 2015 the District Court declared his appeal inadmissible as being out of time, stating that the period for lodging an appeal had started on 27 June 2015, the date on which the judgment had been delivered in full.

[K.I. v. Russia \(no. 58182/14\)](#)

The applicant, K.I., is a Tajik national who was born in 1980. He arrived in Russia in 2003. The case concerns his removal to Tajikistan from Russia.

In 2011, whilst in Russia, K.I. was charged in Tajikistan with participating in an extremist religious movement. The Tajik authorities sent out an international search and arrest warrant and in 2013 he was arrested in Moscow and detained, awaiting extradition. He was later released, in October 2014, and the prosecuting authorities refused to extradite him owing to the absence of culpable actions under Russian criminal law. Immediately afterwards, however, K.I. was arrested and found guilty in administrative proceedings of violating migration regulations, and he was detained awaiting expulsion. In the meantime he had also lodged a request for refugee status, which was refused by the migration authorities in September 2014. According to his lawyer, K.I. was last known, in 2015, to still be in detention.

During the extradition, expulsion and refugee proceedings, K.I. repeatedly argued that he was being prosecuted for extremism and faced a risk of ill-treatment in Tajikistan, but his allegations were all dismissed.

K.I.'s expulsion has, however, in the meantime been stayed on the basis of an interim measure granted by the European Court of Human Rights under Rule 39 of its Rules of Court, which indicated to the Russian Government that he should not be removed to Tajikistan until further notice.

K.I. complains, under Article 3 (prohibition of inhuman or degrading treatment), that he would face a real risk of ill-treatment if removed from Russia to Tajikistan; under Article 13 (right to an effective remedy), that there was a lack of domestic remedies available in Russia for his Article 3 complaint;

and, under Article 5 §§ 1 and 4 (right to liberty and security), that his detention pending extradition had been unlawful and that his appeals against detention orders had not been considered in good time by the domestic courts.

[Sukhanov and Others v. Russia \(no. 56251/12, 23302/13, and 53116/15\)](#)

The applicants, Mikhail Yuryevich Sukhanov, Svetlana Vladimirovna Krestovskaya and Konstantin Valeryevich Mazunin, are Russian nationals who were born respectively in 1987, 1957 and 1978. They live in Volsk, St Petersburg and Perm (Russia) respectively.

The three applications concern decisions given by the civil courts terminating the proceedings before them on the grounds that the applicants had implicitly withdrawn their actions. Under Russian law there is a tacit presumption of withdrawal if an applicant fails to appear at two hearings and has not requested that the case be heard in his or her absence.

Mr Sukhanov brought civil proceedings seeking to be reinstated in his post, and requested that the case be heard in his absence. In June 2012 the Military Court terminated the proceedings, as the applicant had failed to appear at two hearings and had not requested that his action be examined in his absence. Mr Sukhanov appealed, but the appellate court declined to examine the case on the grounds that the contested decision was not open to appeal. Mr Sukhanov made a fresh request which was rejected as being statute-barred.

Ms Krestovskaya brought an action for damages. The day before the first hearing she informed the District Court that she was ill. The hearing was adjourned twice and Ms Krestovskaya did not appear on either occasion. In October 2012 the court terminated the proceedings on the grounds that Ms Krestovskaya had tacitly withdrawn her action. She applied to have the proceedings resumed but her application was rejected because of a procedural defect.

Mr Mazunin brought civil proceedings against a bank through his representative. Both of them requested that the court give a ruling in their absence. Mr Mazunin did not appear at the two hearings, and in April 2015 the court discontinued the proceedings on the grounds that the applicant had not appeared and had not requested that his case be heard in his absence. That decision was not open to appeal.

Relying in particular on Article 6 § 1 (right of access to a court), the applicants allege that their applications to the courts were not examined on the merits. Ms Krestovskaya also relies on Articles 13 (right to an effective remedy) and 17 (prohibition of abuse of rights). Mr Sukhanov and Ms Krestovskaya further allege a breach of their right to the peaceful enjoyment of their possessions (Article 1 of Protocol No. 1).

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Dorić v. Bosnia and Herzegovina (no. 68811/13)

Anamaria Loredana Orășanu and Others v. Romania (no. 43629/13 and 74 other applications)

Kabardokov and Others v. Russia (nos. 11421/13, 15459/13, 15625/13, 15651/13, 18295/13, 19142/13, 19156/13, 19161/13, 19398/13, 19408/13, 19549/13, 19687/13, 19697/13, 19722/13, 22925/13, 22935/13, 22953/13, 23006/13, 23109/13, 23135/13, 23145/13, 26466/13, and 58066/13)

Kovalevy v. Russia (no. 4397/06)

Pukhachev and Zaretskiy v. Russia (nos. 17494/16 and 29203/16)

T.M. and Others v. Russia (nos. 31189/15, 54813/15, 55625/15, 38250/16, and 40014/16)

Turishchev v. Russia (no. 16200/04)

Vorokov and Others v. Russia (nos. 76648/12, 15473/13, 18775/13, 19179/13, 19237/13, 19422/13, 19541/13, 23177/13, 58441/13, and 60167/13)
Joksimović v. Serbia (no. 37929/10)

Thursday 9 November 2017

[Hentschel and Stark v. Germany \(no. 47274/15\)](#)

The applicants, Ingo Hentschel and Matthias Stark, are German nationals who were born in 1969 and 1989 and live in Illertissen and Harburg (Germany) respectively. The case concerns their complaint of having been ill-treated by the police and of the inadequacy of the ensuing investigation.

Both applicants attended a football match in Munich on 9 December 2007. Over 200 police officers were deployed during the match, including several riot control units, in view of an expected risk of clashes between rival football supporters. After the end of the match the police cordoned off the supporters of one team, including the applicants, for about 15 minutes to prevent them from encountering supporters of the other team.

Mr Hentschel submits that, on their way to the exit after the cordon had been lifted, spectators were approached by a group of police officers, some of whom started hitting them with their truncheons without any prior warning. He alleges that he was hit on his head with a truncheon, resulting in a bleeding wound requiring subsequent treatment in hospital. According to Mr Stark, before exiting the stadium he was grabbed by the shoulder by a police officer who used pepper spray on his face at close range. He alleges that, when subsequently lying down on the ground, he was struck on his arm with a truncheon.

According to the Government's submissions there was no credible evidence that the applicants were deliberately hit or harmed by police officers.

Following media reports on football supporters' accounts of arbitrary attacks by police officers in the aftermath of the match, the Munich public prosecutor's office opened a preliminary investigation in January 2008. The applicants, who had identified their attackers as police officers but had been unable to distinguish them further, owing to their identical uniforms without identifying signs or name tags, both filed criminal complaints against unidentified police officers.

In September 2008 the public prosecutor discontinued the investigation. He found that there was evidence that some police officers had used truncheons in a disproportionate way but concluded that it had been impossible to identify the suspects. On appeal by the applicants, the public prosecutor reopened the investigation in October 2008, ordering further enquiries. In August 2009, the public prosecutor again discontinued the investigation, finding in particular that several football supporters had aggressively approached, insulted and provoked the deployed police officers and that in that situation the officers could have been justified in using their truncheons. The decision was confirmed by the Munich general public prosecutor in 2011. In September 2011 the Munich Court of Appeal declared inadmissible the applicants' action to force further enquiries. In March 2015 the Federal Constitutional Court delivered a reasoned decision refusing to admit the applicants' constitutional complaint.

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicants allege that they were ill-treated by police officers who, owing to an inadequate investigation, were neither identified nor punished. Further relying on Article 13 (right to an effective remedy) in conjunction with Article 3, they also complain that they did not have an effective remedy under German law in respect of their complaint.

Firat v. Greece (no. 46005/11)

The applicant, Celal Firat, is a Turkish national who was born in 1980. At the time the application was lodged he was being detained in Thessaloniki Prison (Greece).

The case concerns the criminal proceedings leading to the conviction of Mr Firat, a migrant smuggler who complains, in particular, of the duration of the appeal proceedings in his case and the length of the sentence he served.

On 22 March 2008 Mr Firat was arrested for illegally transporting irregular migrants into Greece and causing a shipwreck that placed their lives in danger. He was remanded in custody on 24 March 2008. On 15 October 2008 he was sentenced at first instance to 10 years and six months' imprisonment.

On 20 October 2008 the applicant lodged an appeal which did not have suspensive effect. The hearing was adjourned twice and was eventually held on 7 June 2012. Mr Firat was sentenced to seven years and two months' imprisonment. He was granted conditional release on 5 July 2012.

Relying on Article 6 § 1 (right to a fair trial within a reasonable time), Mr Firat complains of the duration of the proceedings before the appellate court and the lack of an effective remedy in domestic law by which to assert that complaint.

Under Article 2 of Protocol No. 7 to the Convention (right of appeal in criminal matters), Mr Firat maintains that he served a longer sentence than should have been the case because of the lengthy adjournment of his appeal hearing.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Fuchshuber v. Austria (no. 61086/14)

Allahverdiyeva v. Azerbaijan (no. 35894/15)

Azimov and Others v. Azerbaijan (nos. 60787/09, 29504/10, 59351/11, 7510/12, 13442/12, and 44739/13)

Garayev v. Azerbaijan (no. 44677/13)

Imanov v. Azerbaijan (no. 47057/13)

V.P. v. Estonia (no. 14185/14)

Leduc v. France (no. 16382/16)

Manfredi v. France (no. 52117/14)

Grüner v. Germany (no. 38130/12)

Ļutova v. Latvia (no. 37105/09)

Mertena v. Latvia (no. 32983/08)

Etute v. Luxembourg (nos. 61606/15 and 701/16)

Han Aarts B.V. and Others v. the Netherlands (no. 43768/17)

Iacob v. Romania (no. 56103/15)

Pităroiu and Others v. Romania (nos. 17024/06, 42418/07, 49217/07, 19299/08, 22928/08, 41068/08, 48082/08, 48097/08, 49532/08, 53316/08, and 54610/08)

Stoicevici v. Romania (no. 5197/07)

Belyayev v. Russia (no. 30688/09)

Bevz and Others v. Russia (nos. 44854/08, 48730/11, 57824/11, 74150/11, and 20832/16)

Dubrovitskiy v. Russia (no. 33173/12)

Kesyan v. Russia (no. 5828/06)

Khachatryan v. Russia (no. 19359/16)

Klimentov v. Russia (no. 49725/12)
Kupressov v. Russia (no. 38138/15)
Kushtov and Others v. Russia (nos. 11208/06, 12187/08, 32228/08, 5537/09, and 6508/12)
M.S. v. Russia (no. 61998/15)
Naumov v. Russia (no. 51497/08)
Shtamov v. Russia (no. 53763/12)
Sukhomlinov v. Russia (no. 33148/15)
Sychev v. Russia (no. 47806/16)
Yanovskiy and Others v. Russia (nos. 48562/16, 53745/16, 60200/16, and 67866/16)
Ćirović v. Serbia (no. 19971/07)
Čolaković v. Serbia (no. 29230/16)
Kovačević and Others v. Serbia (nos. 49235/15, 49440/15, 49727/15, 49734/15, and 53050/15)
Lugić v. Serbia (no. 29169/16)
Bušac v. Slovenia (no. 72066/12)
Jiménez Ruiz v. Spain (no. 2649/16)
K.L. v. Sweden (no. 25141/16)
Bubenets and Others v. Ukraine (nos. 57684/16, 57686/16, 57688/16, 57690/16, 2244/17, 17904/17, and 19967/17)
Kravets and Others v. Ukraine (nos. 75413/11, 54457/15, 60489/16, and 23706/17)
Shanin v. Ukraine (no. 6937/08)
Sisin v. Ukraine (no. 30114/11)
Zhygareva and Slednyov v. Ukraine (nos. 14573/08 and 17990/08)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.